



Republic of the Philippines  
City of Cagayan de Oro  
**BARANGAY BALULANG**

Republic of the Philippines  
OFFICE OF THE CITY COUNCIL  
City of Cagayan de Oro

**RECEIVED**

Date: **SEP 03 2026**

Time: **3:54**

By: **JUSTIN KYLE P. ASNE**  
Local Legislative Staff Officer

OFFICE OF THE SANGGUNIANG BARANGAY

**EXCERPT FROM THE MINUTES OF THE 64th REGULAR SESSION OF  
THE SANGGUNIANG BARANGAY OF BALULANG, THIS CITY, HELD ON  
JULY 15, 2026 AT BALULANG SESSION HALL, CAGAYAN DE ORO  
CITY**

**PRESENT:**

|                                |   |                 |
|--------------------------------|---|-----------------|
| HON. EDWIN E. MICABANI         | - | Punong Barangay |
| HON. EDWIN S. DUTERTE          | - | Brgy. Kagawad   |
| HON. BOYBLO M. CARCUSA         | - | Brgy. Kagawad   |
| HON. REGINALD JAY G. ACAYLAR-  | - | Brgy. Kagawad   |
| HON. ROCHELLE M. BATION        | - | Brgy. Kagawad   |
| HON. RONIL C. ACEBES           | - | Brgy. Kagawad   |
| HON. WILFREDO T. NG SR.        | - | Brgy. Kagawad   |
| HON. HERVIN KENT B. PACALDO-   | - | Brgy. Kagawad   |
| HON. CHARLES SLADE M. PIQUERO- | - | SK Chairperson  |
| ABIGAIL MAE S. SALO            | - | Brgy. Secretary |
| MARY ANN L. LAMOCHA            | - | Brgy. Treasurer |

**BARANGAY ORDINANCE NO. 2026-005  
Series of 2026**

**AN ORDINANCE BANNING DRINKING OF LIQUOR AND  
INTOXICATING BEVERAGES IN PUBLIC AREAS IN BARANGAY  
BALULANG, CAGAYAN DE ORO CITY**

WHEREAS, Section 16 of the Local Government Code of 1991 states that "every local government unit shall exercise the powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance, and those essential to the promotion of the general welfare. Within their respective territorial jurisdictions, local government units shall maintain peace and order, protect life, liberty and property, promote the general welfare and preserve the comfort and convenience of their inhabitants;

WHEREAS, one of the objectives of the Safer Cities is to make communities safer, wherein people may freely go about their daily lives without fear of being harmed;

WHEREAS, the Sangguninang Panlalawigan/Panlungsod/Bayan recognizes the importance of keeping the general public safe from harm through the enactment of measures aimed at curbing criminality, disorder, and immorality;

WHEREAS, it is observed that the consumption of alcoholic beverages in parks, streets, sidewalks and other public places contributes to public disturbances, accidents, and unruly behavior;

WHEREAS, it is recognized that communities become ultimately safer when public roads are clear of intoxicated persons, and disorderly gatherings causing disturbance to public order;

NOW THEREFORE, BE IT ENACTED AS IT IS HEREBY ENACTED by the Barangay Council of Balulang, by virtue of the powers vested in it by law, in session assembled, that:

**SECTION 1.** Title of the Ordinance. This ordinance shall be known as the Anti- Public intoxication Ordinance of Barangay Balulang, Cagayan de Oro City

**SECTION 2.** Coverage. This Ordinance shall be applicable to all persons within the territorial jurisdiction of Barangay Balulang, Cagayan de Oro City

**SECTION 3.** Definition of Terms. For purposes of this Ordinance, the following terms shall mean:

1. **Alcoholic Beverage** – Any drink containing ethyl alcohol (ethanol), including but not limited to beer, wine, liquor, spirits, gin, rum, vodka, whiskey, brandy, tequila, and other intoxicating beverages, regardless of alcohol content.
2. **Liquor** – Any distilled or fermented alcoholic beverage intended for human consumption that can cause intoxication.
3. **Intoxicating Beverage** – Any beverage containing alcohol in sufficient quantity that may impair a person's physical or mental faculties when consumed.
4. **Public Place** – Any street, road, sidewalk, alley, park, plaza, market, waiting shed, parking area, open space, or any place generally accessible or open to the public within the territorial jurisdiction of Barangay Balulang, including areas outside commercial establishments that are open to public access.
5. **Public Drinking** – The act of consuming, sipping, or otherwise drinking any alcoholic or intoxicating beverage in any public place covered by this Ordinance.
6. **Intoxicated Person** – A person who, by reason of consuming alcoholic beverages, exhibits impaired judgment, coordination, speech, or behavior, or poses a disturbance or danger to oneself or others.
7. **Authorized Public Event** – A public gathering, festival, fiesta, civic activity, or similar event for which the City Mayor or other competent

authority has expressly issued a written permit allowing the serving or consumption of alcoholic beverages.

8. **Person** – Any natural person, whether a resident or non-resident of Barangay Balulang, who is within the territorial jurisdiction of the barangay.

9. **Barangay** – Barangay Balulang, City of Cagayan de Oro.

**SECTION 4.** Prohibited Acts. It shall be unlawful for any person to drink liquor or intoxicating beverages in public streets, roads, sidewalks, and similar public places except when explicitly authorized by the Mayor.

**SECTION 5.** Exemptions. The provisions of this Ordinance shall not apply to stores, bars, restaurants, hotels, clubs, and other business establishments that possess a valid Business Permit and are authorized to sell and allow the on-premises consumption of alcoholic beverages, provided that:

1. The consumption of alcoholic beverages is strictly confined within the premises of the establishment;
2. The establishment complies with all applicable national laws, city ordinances, and barangay regulations; and
3. The establishment does not permit the consumption of alcoholic beverages outside its authorized premises or in any public place covered by this Ordinance.

**SECTION 6.** Penalties. The following penalties shall be imposed for violation of this Ordinance

| VIOLATION                                          | PENALTY                                                                                                              |
|----------------------------------------------------|----------------------------------------------------------------------------------------------------------------------|
| First (1 <sup>ST</sup> )                           | Php 500.00                                                                                                           |
| Second (2 <sup>nd</sup> )                          | Php 1,000.00                                                                                                         |
| Third (3 <sup>rd</sup> ) and Succeeding Violations | Php 2,500.00 fine or imprisonment for a period not exceeding six (6) months, or both at the discretion of the court. |

**SECTION 7.** Repealing Clause. All ordinances or resolutions or parts thereof inconsistent therewith or pails hereof are hereby deemed repealed, amended or modified accordingly.

**SECTION 8.** Effectivity Clause. This Ordinance, upon its approval shall take effect immediately after ten (10) days from posting in a bulletin board at the entrance of the barangay hall and in at least two (2) other conspicuous places and from publication in a newspaper of general circulation.

ENACTED this 15th day of JULY, 2026 at Barangay Balulang, City of Cagayan de Oro.

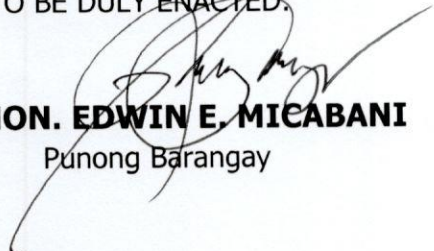
**UNANIMOUSLY APPROVED.**

**I hereby certify that the foregoing ordinance was duly enacted by the Sangguniang Barangay of Barangay Balulang during its 64<sup>th</sup> Regular Session on July 15, 2026 at Barangay Balulang, Cagayan de Oro City.**

  
**ABIGAIL MAE S. SALO**

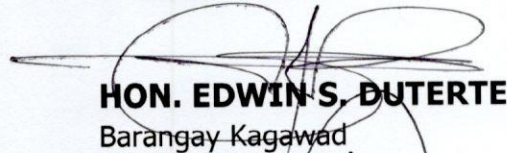
Barangay Secretary, Sangguniang Barangay

ATTESTED AND CERTIFIED  
TO BE DULY ENACTED:

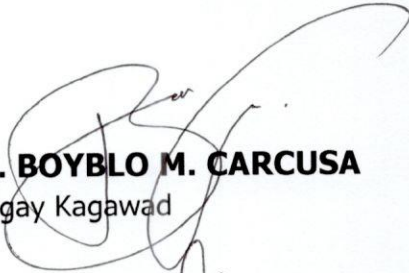
  
**HON. EDWIN E. MICABANI**

Punong Barangay

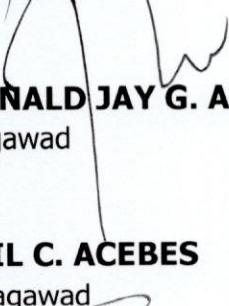
**APPROVED:**

  
**HON. EDWIN S. DUTERTE**

Barangay Kagawad

  
**HON. BOYBLO M. CARCUSA**

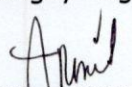
Barangay Kagawad

  
**HON. REGINALD JAY G. ACAYLAR**

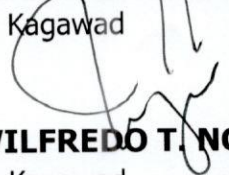
Barangay Kagawad

  
**HON. ROCHELLE M. BATION**

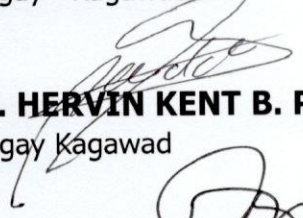
Barangay Kagawad

  
**HON. RONIL C. ACEBES**

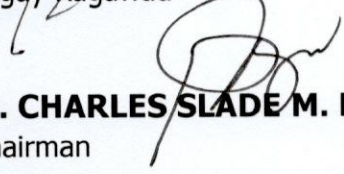
Barangay Kagawad

  
**HON. WILFREDO T. NG SR.**

Barangay Kagawad

  
**HON. HERVIN KENT B. PACALDO**

Barangay Kagawad

  
**HON. CHARLES SLADE M. PIQUERO**

SK Chairman

-----Nothing Follows-----